The Mississippi Black Codes

State of Mississippi · 1865

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> Right after the Civil War, Mississippi's legislature passed laws to control freedpeople — forcing labor contracts, allowing forced "apprenticeship" of Black children, and criminalizing unemployment — recreating slavery in all but name and provoking Radical Reconstruction.

An Act to Confer Civil Rights on Freedmen

Section 1. Be it Enacted by the Legislature of the State of Mississippi, That all freedmen, free Negroes, and mulattoes may sue and be sued, . . . may acquire personal property . . . and may dispose of the same in the same manner and to the same extent that white persons may: [but no] freedman, free Negro, or mulatto [shall] rent or lease any lands or tenements, except in incorporated towns or cities, in which places the corporate authorities shall control the same.

[. . .]

Sec 6. Be it further enacted, That All contracts for labor made with freedmen, free Negroes, and mulattoes for a longer period than one month shall be in writing and in duplicate, attested and read to said freedman, free Negro, or mulatto by a beat, city, or county officer, or two disinterested white persons of the county in which the labor is to be performed, of which each party shall have one; . . . and if the laborer shall quit the service of the employer before expiration of his term of service without good cause, he shall forfeit his wages for that year, up to the time of quitting.

Sec 7. Be it further enacted, That every civil officer shall, and every person may, arrest and carry back to his or her legal employer any freedman, free Negro, or mulatto who shall have quit the service of his or her employer before the expiration of his or her term of service without good cause, and said officer and person shall be entitled to receive for arresting and carrying back every deserting employee aforesaid the sum of five dollars

[. . .]

An Act to Regulate the Relation of Master and Apprentice

Section 1. Be it enacted by the Legislature of the State of Mississippi, That it shall be the duty of all sheriffs, justices of the peace, and other civil officers of the several counties in this state to report to the Probate courts of their respective counties semiannually, at the January and July terms of said courts, all freedmen, free Negroes, and mulattoes under the age of eighteen within their respective counties, beats, or districts who are orphans, or whose parent or parents have not the means, or who refuse to provide for and support said minors; and thereupon it shall be the duty of said Probate Court to order the clerk of said court to apprentice said minors to some competent and suitable person, on such terms as the court may direct, having a particular care to the interest of said minors: Provided, that the former owner of said minors shall have the preference when, in the opinion of the court, he or she shall be a suitable person for that purpose. . . . Sec 3. Be it further enacted, That in the management and control of said apprentices, said master or mistress shall have power to inflict such moderate corporeal chastisement as a father or guardian is allowed to inflict on his or her child or ward at common law: Provided that in no case shall cruel or inhuman punishment be inflicted.

[. . .]

An Act to Amend the Vagrant Laws of the State

Sec 2. Be it further enacted, That all freedmen, free Negroes, and mulattoes in this state over the age of eighteen years found . . . with no lawful employment or business, or found unlawfully assembling themselves together . . . and all white persons so assembling with freedmen, free Negroes, or mulattoes, or usually associating with freedmen, free Negroes, or mulattoes

on terms of equality, or living in adultery or fornication with a freedwoman, free Negro, or mulatto, shall be deemed vagrants; and, on conviction thereof, shall be fined in the sum of not exceeding, in the case of a freedman, free Negro, or mulatto, fifty dollars, and a white man, two hundred dollars, and imprisoned at the discretion of the court, the free Negro not exceeding ten days, and the white man not exceeding six months.

[. . .]

An Act to Punish Certain Offenses Herein Named

Section 1. Be it enacted by the Legislature of the State of Mississippi, That no freedman, free Negro, or mulatto not in the military service of the United States government, and not licensed so to do by the board of police of his or her county, shall keep or carry firearms of any kind, or any ammunition, dirk, or Bowie knife . . . Sec 5. Be it further enacted, That if any freedman, free Negro, or mulatto convicted of any of the misdemeanors provided against in this act shall fail or refuse, for the space of five days after conviction, to pay the fine and costs imposed, such person shall be hired out by the sheriff or other officer . . . to any white person who will pay said fine and all costs and take such convict for the shortest time.

Words to know

mulattoes — people of mixed Black and white ancestry

tenements — rented land or buildings

attested — witnessed and certified as genuine

forfeit — lose as a penalty

apprentice — bind a child to work for a master in exchange for upkeep

corporeal chastisement — physical punishment

vagrants — people with no job or fixed home, treated as criminals

hired out — rented out as a laborer to whoever pays the fine